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General Knowledge

Indian Polity

STUDY NOTES

Introduction to Parliament

PARLIAMENT

Introduction

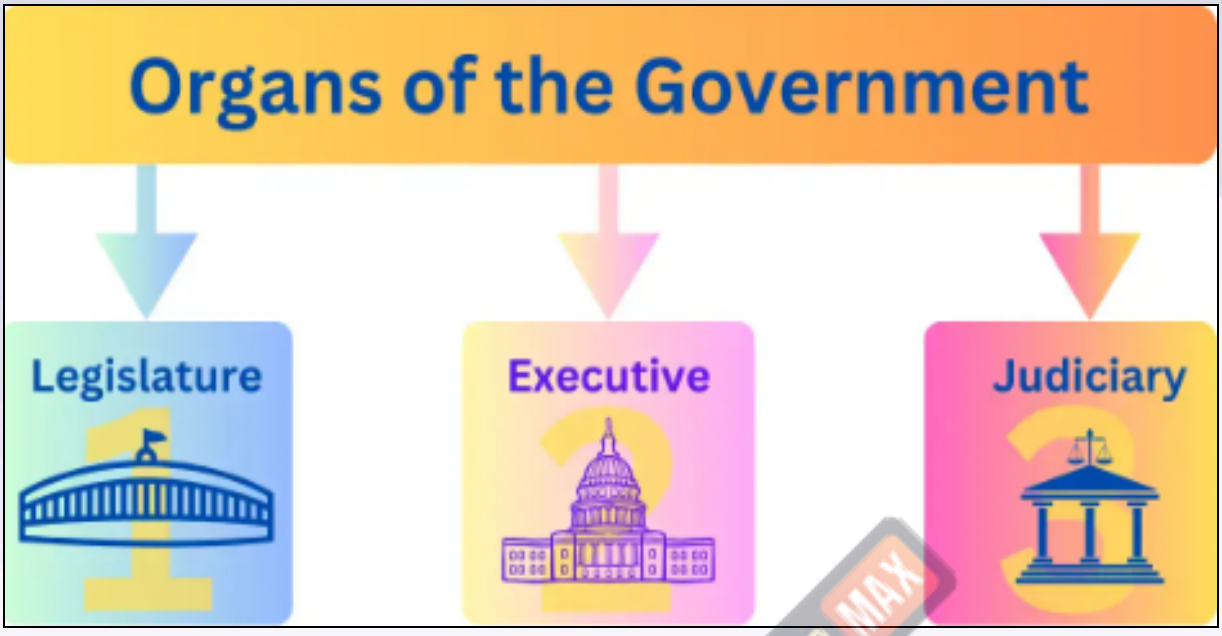
- The Indian Parliament is the cornerstone of the nation's democratic **governance**, modeled on the **British Westminster system**.
- It operates as a **parliamentary system**, also referred to as the Cabinet system or **Prime Minister Model.**
- Parliament is the supreme legislative body of India, playing a pivotal role in shaping the country's socio-political framework.

Composition of the Indian Parliament

The Indian Parliament consists of three components:

- The President of India: Holds the authority to summon, prorogue, and dissolve the Lok Sabha.
- Rajya Sabha (Council of States): The upper house, representing the states and union territories.
- Lok Sabha (House of the People): The lower house, directly elected by the people.

The Indian Parliament embodies the aspirations of the citizens, functioning as the supreme legislative authority.



Legislature

- Elected by the people to represent their interests; central to democratic governance.
- Indian National Congress called for an **elected legislature in 1885**, leading to a universal adult franchise in the Constitution.

Bicameral Legislature

- Comprises two houses - Rajya Sabha (Council of States) and Lok Sabha (House of the People).
- Ensures representation of diverse regions and allows for reconsideration of decisions.

Parliament

- National assembly of elected representatives exercising supreme authority on behalf of the people.
- The Parliament of India is the **highest legislative authority** in the country and is essential to the parliamentary system of governance.

Constitutional Framework:

- **Articles 79 to 122 in Part V** of the Constitution outline the organization, composition, duration, officers, procedures, privileges, and powers of Parliament.
- The Indian Parliament is modeled after the British system rather than the American system, where the President is not part of the legislature.

Historical Evolution:

- Transitioned from a colonial rule to the **world's largest liberal democracy.**
- Represents the highest aspirations of the Indian populace, including dignity, social equity, and national pride.
- The first general elections under the Indian Constitution were held in 1951-52, establishing the first elected Parliament in April 1952.

Core Principles:

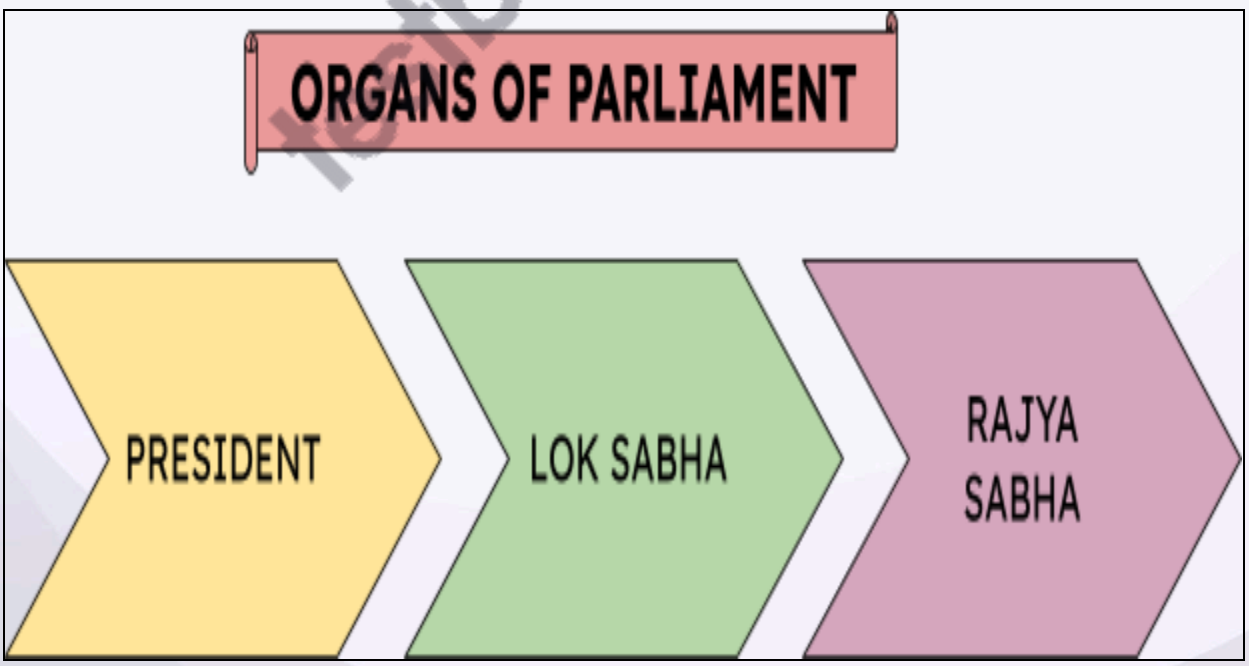
- Operates on the moral foundation of Ahimsa (non-violence), ensuring **every citizen's right to be heard.**
- Functions as the supreme legislative body, safeguarding individual rights.

Social Change:

- Plays a crucial role in addressing societal stratifications and enacting progressive laws.
- Aids in modernizing India by challenging deep-rooted taboos and obscurantist practices.

Institutional Dynamics:

- The Parliament is a continuously evolving institution, adapting to societal changes and aspirations.
- Emphasizes the importance of communicating its functioning to maintain public trust.



Rajya Sabha (Council of States): Upper House (Permanent House).

Composition: Maximum of 250 members—238 elected representatives from states and UTs (Union Territories) and 12 nominated by the President.	**Current Strength:** 245 members (229 from states, 4 from UTs, 12 nominated).	**Elections:** Members from states are elected by state legislative assemblies; UT representatives are elected by a specially constituted electoral college.	**Functions:** Reviews and alters laws initiated by the Lok Sabha and can initiate legislation.

Lok Sabha (House of the People): Lower House (Popular House).

Composition: Maximum of 550 members—530 from states and 20 from UTs.	**Current Strength:** 543 members (530 from states, 13 from UTs).	**Elections:** Members are directly elected by the public.	**Functions:** Selects the executive (government) and is responsible for money-related matters.

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Legislative Procedure

- **Bill Types:**
  1. **Private Member's Bill**: Proposed by non-ministers.
  2. **Government Bill**: Proposed by ministers.
- **Stages:**
  1. **Draft Preparation**: Developed by the concerned ministry.
  2. **Committee Discussion**: Detailed examination by committees.

3. **Voting**: Requires approval from both Houses; disagreements resolved in Joint Sessions.

Powers and Responsibilities

Rajya Sabha:

- Represents states and must consent to matters affecting them.
- Important in reviewing legislation initiated by the Lok Sabha.

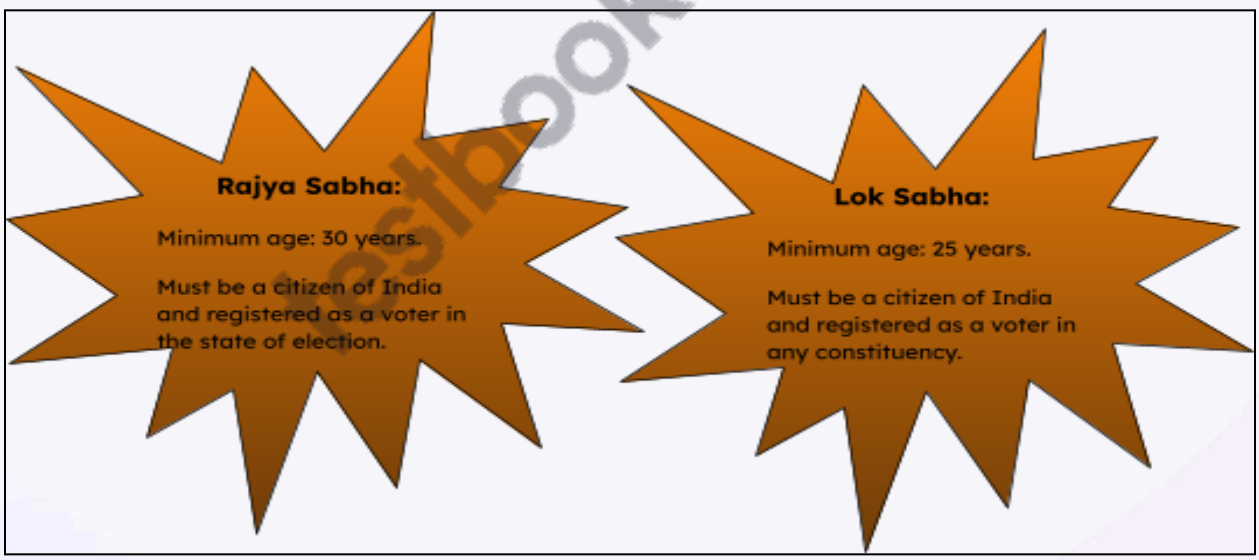
Lok Sabha:

- Controls the Council of Ministers; can pass a vote of no confidence.
- Has precedence in financial matters; cannot be overridden by the Rajya Sabha.

President of India:

- Not a member of either house but integral to Parliament.
- Assents to bills summons and prorogues sessions, and can dissolve the Lok Sabha.

Membership Qualifications



Tenure and Disqualifications:

Rajya Sabha:

Members serve a term of six years, with one-third retiring every two years.

Lok Sabha:

Normal term: five years, but can be dissolved earlier.

Disqualifications:

- Including holding an office of profit, unsound mind, insolvency, and certain criminal convictions.

Functions of Parliament

1. **Legislative Functions:**
   - Makes laws on Union List subjects and shares law-making powers on Concurrent List subjects with state legislatures.
2. **Financial Functions:**
   - Approves the budget and ensures government spending is authorized.
3. **Electoral Functions:**
   - Participates in the election of the President and Vice-President.
4. **Removal Powers:**
   - Can impeach the President and remove judges of higher courts.
5. **Amendment Powers:**
   - Can amend most parts of the Constitution with a special majority.
6. **Executive Oversight:**
   - Exercises control over the executive through various motions and question periods.

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